

24STCV04845 24STCV04845

County: los-angeles

Division: Civil Law and Motion

Department: 414

Hearing date: 2026-08-06

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C414%2C08%2F06%2F2026

Source SHA-256: 9a3cfc426d92d53897d595c919055b95135a27d5652737a567b612eb8dd746e0

Case Number: 24STCV04845 Hearing Date: August 6, 2026 Dept: 414

24STCV04845

Enrique Aguilar, et al. v. Arturo Carmona

Thursday, August

6, 2026

[TENTATIVE] ORDER DENYING

PLAINTIFFS' MOTION FOR SANCTIONS PURSUANT TO CODE OF CIVIL PROCEDURE SECTION
128.5

I.

Background

Plaintiffs

leased residential property from Defendant. Plaintiffs allege seven causes of
action arising from the uninhabitable conditions of the premises.

II. Arguments

Plaintiffs

move for monetary sanctions under Code of Civil Procedure section 128.5 against
Defendant Arturo Carmona, and his counsel for engaging in bad faith actions by
filing a frivolous demurrer based on uncertainty. Defendant allegedly took
words out of context and ignored all allegations in the complaint. The demurrer
is set for hearing on October 8, 2026.

Plaintiffs

also argue that Defendant filed a first motion to quash arguing lack of proper

service of the summons and complaint, which the Court granted. (M.O. 6.20.25.) Plaintiffs served Defendant at an address given by Defendant, however, Defendant filed a second motion to quash service of the summons and complaint without any factual support. The Court denied the motion. (M.O. 2/26/26.) Defendant then demurred to the complaint, rather than file a responsive pleading.

Defendant

responds that the motion to vacate default and motion to quash service of summons and complaint were meritorious and were granted. Defendant believes the demurrer and motion to strike are meritorious and legally viable and were not filed for harassment or delay. Defendant contends that Plaintiffs did not comply with the safe harbor rule requiring that the motion be served but not filed until 21 days after receipt of the motion to allow Defendant to withdraw the offending paper.

In reply, Plaintiffs contend Defendant fails to excuse the core issue, which is Defendant's systematic use of meritless, repetitive motion practice designed solely to delay these proceedings, inflate costs, and harass Plaintiffs. Defendant has engaged in an ongoing strategy of gamesmanship. Plaintiffs adhered to the statute's safe harbor provision.

III. Discussion

The court has discretion to "order a party, the party's attorney, or both, to pay the reasonable expenses, including attorney's fees, incurred by another party as a result of actions or tactics, made in bad faith, that are frivolous or solely intended to cause unnecessary delay." (Code Civ. Proc., § 128.5, subd. (a).) "Frivolous" is defined as "totally and completely without merit or for the sole purpose of harassing an opposing party." (Code Civ. Proc., § 128.5, subd. (b)(2).) The section does not apply to disclosures and discovery requests, responses, objections, and motions." (Id.). subd (e).)

In effect, filing a motion for sanctions is a two-step procedure. First, the moving party must serve a notice of motion for sanctions on the offending party at least 21 days before filing the motion with the court. The motion must specifically describe the sanctionable conduct.

If the offending party does not withdraw the pleading or otherwise correct the sanctionable conduct, then the motion may be filed, and the court may determine an appropriate sanction. (Code Civ. Proc., § 128.5 (f)(1)(B).)

Plaintiffs complied with the safe harbor rule by first electronically transmitting the motion and intent to seek sanctions to defense counsel on April 16, 2026, as Defendant acknowledges. (Opp. Decl. of Richard Jacobs, Ex. D.) Plaintiffs did not file this motion until May 29, 2026, 43 days later.

Plaintiffs argue that Defendant engages in a “pattern” of repetitive motion practice, which Plaintiffs believe to be frivolous. However, the Court granted Defendant’s motion to set aside default and motion to quash service of summons. (M.O. 6/20/25.) As they were meritorious, they cannot be regarded as frivolous or in bad faith.

The Court subsequently denied Defendant’s second motion to quash service of summons and complaint because Defendant did not overcome the presumption of proper service. (M.O. 2/26/26.) The Court does not find that the second motion to quash was frivolous or “solely” intended to cause delay.

Defendant has the statutory right to challenge the complaint by demurrer. (Code Civ. Proc., § 430.10.) Defendant filed a demurrer to the complaint and motion to strike on March 20, 2026. Exercising a statutory right to challenge the pleading and successfully moving the Court for relief does not demonstrate a pattern of bad faith or frivolous motion practice. Plaintiffs’ belief that the demurrer lacks merit does not establish that Defendant acted in bad faith.

Sanctions under Civil Procedure section 128.5 should not be imposed except in the clearest of cases. (Luke v. Baldwin-United Corp. (1985) 167 Cal.App.3d 664, 669.) It should deter only the most egregious misconduct. (Id. at 668.) Luke cautioned that “any definition must be read so as to avoid a serious chilling effect on the assertion of litigants’ rights” (Id. at 668.) Plaintiffs have not met the required standing for imposing sanctions under this section.

A party prevailing on the motion may be awarded the reasonable expenses and attorney’s fees incurred in opposing the motion “if warranted.” (Code Civ. Proc., § 128.5, subd. (f)(1)(C).) The Court has reviewed the parties’ email correspondence showing defense counsel attempted to meet and confer with Plaintiffs’ counsel six times with respect to both the demurrer and this motion. (Jacobs

decl., ¶ 6.) Mr. Jacobs was unsuccessful in speaking with an attorney, as none was in the office. Mr. Jacobs was offered a case manager to confer with, which he refused. (Id.) Defense counsel was then able to speak with an attorney who was a “contract” attorney that did not work in the office, but who informed defense counsel to file the demurrer without any discussion of sanctions or bad faith. (Id.)

The 21-day safe harbor rule is of no effect if the moving party does not confer with opposing counsel about the merits of the motion and the paper or alleged misconduct supporting the motion. Accordingly, Defendant’s request for imposition of sanctions against Plaintiffs’ counsel is warranted.

The Court finds that defense counsel’s hourly rate of \$550 per hour is reasonable, and the time incurred or to be incurred in opposing the motion and appearing at the hearing (six hours) is also reasonable for a total of \$3,300 in monetary sanctions.

IV.

CONCLUSION

Based on the foregoing, Plaintiffs’ motion for imposition of sanctions pursuant to Civil Procedure section 128.5 is DENIED. Defendant’s request for imposition of sanctions against Plaintiffs’ counsel and counsel’s law firm is GRANTED. Plaintiffs’ counsel is ordered to pay \$3,300 to defense counsel within 10 days. The statute provides that “absent exceptional circumstances, a law firm shall be held jointly responsible for violations committed by its partners, associates, and employees.” (Code Civ. Proc., § 128.5 (f)(1)(C.)